

HOUSE No. 4730

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, November 13, 2025.

The committee on Public Health, to whom was referred the petition (accompanied by bill, House, No. 2535) of Greg Schwartz, Kate Donaghue and others for legislation to establish a universal purchase system for opioid antagonist distribution in the Commonwealth, reports recommending that the accompanying bill (House, No. 4730) ought to pass.

For the committee,

MARJORIE C. DECKER.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a Naloxone Purchase Trust fund.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 111 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after section 244 the following section:-

3 Section 245. (a) As used in this section the following words shall, unless the context
4 clearly requires otherwise, have the following meanings:-

5 “Estimated cost”, a projection of funds needed during a fiscal year for the purchase,
6 storage and distribution of opioid antagonists.

7 "Opioid antagonist", naloxone or any other drug approved by the federal Food and Drug
8 Administration as a competitive narcotic antagonist used in the reversal of overdoses caused by
9 opioids.

10 “Opioid antagonist distribution”, the provision of opioid antagonists to healthcare
11 facilities including, but not limited to:

12 (i) acute care hospitals;

- (ii) emergency departments;
- (iii) substance use disorder treatment facilities; and
- (iv) community health centers

provided that, opioid antagonists shall be offered to a patient who has (i) a history of using opioids; (ii) been diagnosed with opioid use disorder; or (iii) experienced an opioid-related overdose.

“Substance use disorder treatment facilities”, a facility licensed or approved by the department or the department of mental health to offer treatment for substance use disorder, including, but not limited to: (i) withdrawal management services; (ii) clinical stabilization services; (iii) transitional support services; (iv) residential support services; (v) community behavioral health center services; (vi) office-based opioid or addiction treatment services; or (vii) inpatient or outpatient substance use disorder services.

(b) There shall be established in the commonwealth a separate trust fund to be known as the Naloxone Purchase Trust Fund to support a universal purchase system for opioid antagonist distribution in the commonwealth. The fund shall be expended to cover the costs of opioid antagonist distribution. The fund shall consist of all monies transferred from the executive office of health and human services pursuant to section 66 of chapter 118E, all money received as voluntary contributions to the fund, including but not limited to contributions from third party payers or third party administrators, as defined in section 1 of chapter 12C and any interest earnings on such monies. The fund shall be maintained by the commissioner of the department or a designee. The monies shall be expended under the direction of the department, without prior appropriation, solely to cover opioid antagonist distribution program costs; provided, however,

that the amount to be expended for storing and distributing opioid antagonists, if such costs are not covered by federal contribution, shall not exceed 10 per cent of the total amount of the fund expended for the purchase of naloxone needed for opioid agonist distribution in the commonwealth. The department may incur expenses and the comptroller may certify for payment amounts in anticipation of the most recent estimate of expected receipts, as certified by the secretary of administration and finance; provided, however, that no expenditure shall be made from the fund that shall cause the fund to be in deficit at the close of a fiscal year. Any balance in the fund at the close of a fiscal year shall be available for expenditure in subsequent fiscal years and shall not be transferred to any other fund or revert to the General Fund. The commissioner of the department or a designee shall annually report the amount of funds collected and any expenditures made from the fund to the house and senate committees on ways and means, the joint committee on public health and the joint committee on health care financing.

(c) The department may adopt rules and regulations as necessary to implement the universal purchase and distribution system under this chapter and other applicable state and federal laws.

SECTION 2. Section 64 of chapter 118E, as most recently amended by section 122 of chapter 140 of the acts of 2024, is hereby amended by inserting after the definition of “Medicaid managed care organization services subject to assessment” the following definition:-

“Opioid antagonist revenue amount”, the estimated costs to purchase, store and distribute opioid antagonists for the reversal of overdoses caused by opioids and administer the Naloxone Purchase Trust Fund, established in section 245 of chapter 111 and that take into consideration

the limitations on expenditures described in subsection (b) of section 245 of chapter 111 as well as any anticipated surplus or deficit in said Naloxone Purchase Trust Fund, but excluding any costs anticipated to be covered by federal contribution.

SECTION 3. Said section 64 of said chapter 118E, as most recently amended by section 122 of chapter 140 of the acts of 2024, is hereby further amended by striking out the definition of “Total managed care organization services assessment amount” and inserting in place thereof the following definition:-

“Total managed care organization services assessment amount”, an amount equal, for each year, to the sum of the following in the same year: (i) the managed care organization reinvestment revenue amount; (ii) the health safety net managed care organization revenue amount; (iii) the Massachusetts Child Psychiatry Access Project revenue amount; (iv) the immunization revenue amount; (v) the health policy commission revenue amount; (vi) the center for health information and analysis revenue amount; (vii) the amount transferred, pursuant to section 66, to the Behavioral Health Access and Crisis Intervention Trust Fund established in section 2WWWW of chapter 29; (viii) the opioid antagonist revenue amount; and (ix) the amounts necessary to incorporate prospectively all adjustments or reconciliations to account for under-assessments in the prior year.

SECTION 4. Subsection (b) of section 66 of chapter 118E, as most recently amended by section 126 of chapter 140 of the acts of 2024, is hereby amended by striking the words “and (vii) all property and securities acquired by and through the use of money belonging to the fund and all interest thereon” and inserting in place thereof the following words:-

“(vii) an amount equal to the opioid antagonist revenue amount established in section 2245 of chapter 111; and (viii) all property and securities acquired by and through the use of money belonging to the fund and all interest thereon”

SECTION 5. Said subsection (b) of section 66 of chapter 118E, as most recently amended by section 126 of chapter 140 of the acts of 2024, is hereby amended by striking the words “and (K) \$35,000,000 to the Essential Community Provider Trust Fund established in section 2PPP of chapter 29” and inserting in place thereof the following words:-

“(K) \$35,000,000 to the Essential Community Provider Trust Fund established in section 2PPP of chapter 29; and (L) an amount equal to the opioid antagonist revenue amount established in section 225 of chapter 111”

SECTION 6. Said subsection (b) of section 66 of chapter 118E, as most recently amended by section 126 of chapter 140 of the acts of 2024, is hereby amended by striking the words, “and the Behavioral Health Access and Crisis Intervention Trust Fund” and inserting in place thereof the following words:-

“, the Behavioral Health Access and Crisis Intervention Trust Fund and the Naloxone Purchase Trust Fund,”

SECTION 7. Said subsection (b) of section 66 of chapter 118E, as most recently amended by section 127 of chapter 140 of the acts of 2024, is hereby amended by striking the words “and (vii) all property and securities acquired by and through the use of money belonging to the fund and all interest thereon” and inserting in place thereof the following words:-

“(vii) an amount equal to the opioid antagonist revenue amount established in section 225 of chapter 111; and (vii) all property and securities acquired by and through the use of money belonging to the fund and all interest thereon”

SECTION 8. Said subsection (b) of section 66 of chapter 118E, as most recently amended by section 127 of chapter 140 of the acts of 2024, is hereby amended by striking the words “and (F) an amount equal to the center for health information and analysis revenue amount to the Center for Health Information and Analysis Fund established in section 7A of chapter 12C” and inserting in place thereof the following words:-

“(F) an amount equal to the center for health information and analysis revenue amount to the Center for Health Information and Analysis Fund established in section 7A of chapter 12C; and (G) an amount equal to the opioid antagonist revenue amount established in section 225 of chapter 111”

SECTION 9. Said subsection (b) of section 66 of chapter 118E, as most recently amended by section 127 of chapter 140 of the acts of 2024, is hereby amended by striking the words “and the Behavioral Health Access and Crisis Intervention Trust Fund” and inserting in place thereof the following words:-

“, the Behavioral Health Access and Crisis Intervention Trust Fund and the Naloxone Purchase Trust Fund,”

SECTION 10. Notwithstanding any general or special law to the contrary, the secretary of health and human services shall seek all required federal approvals that the secretary deems necessary to implement sections 1 to 9, inclusive, including any required waivers under 42 CFR § 433.68 necessary to implement changes to the managed care organization services assessment

120 described in section 68 of chapter 118E of the General Laws. Sections 1 to 9, inclusive, shall not
121 become effective until the later of the effective date of this act or the first full calendar month
122 following the calendar month in which the secretary determines that all such federal approvals
123 have been received.